



INTERNAL SECURITY

MODULE - 8

JAMMU AND KASHMIR MILITANCY

INSTRUMENT OF ACCESSION AND REFERENDUM

- 1** Maharaja Hari Singh feared forced accession to India on one hand and communal backlash from Pakistan on the other hand.
- 2** The rulers of princely states were given an option to join either India or Pakistan.
- 3** The ruler of Kashmir Maharaja Hari Singh did not exercise the option immediately.
- 4** He instead offered a proposal of standstill agreement to both India and Pakistan.
- 5** In October 1947, several Pathan tribesmen with the help of Pakistan army invaded Kashmir.
- 6** The Maharaja asked Nehru for military help. Mountbatten insisted that under international law, troops could be sent to Kashmir only after the state's formal accession to India.
- 7** Finally on October 26, 1947, the Maharaja acceded to India by signing the Instrument of Accession.
- 8** After the accession, the invaders were gradually driven out of the Valley by Indian troops except the area which is known as "Pakistan Occupied Kashmir (PoK)".

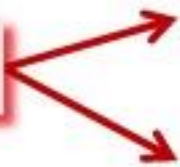
JAMMU AND KASHMIR MILITANCY

MORE ON PoK!

SITUATION OF PoK AFTER 1947

- Article 370 – Indian side of Kashmir

▪ PoK



Azad Kashmir

Gilgit Baltistan

- Shaksgam valley of PoK ceded to China in 1963

STRATEGIC IMPORTANCE OF PoK

It shares borders with the following areas:

- Pakistan area of Punjab
- Wakhan corridor of Afghanistan
- Xinjiang province of People's Republic of China
- Indian side of Kashmir



CHINA

Territory ceded by
Pakistan to China
in 1963

**GILGIT BALTISTAN
(PAKISTAN CONTROL)**

Siachen Glacier

AFGHANISTAN

KARGIL

Line of Control

**AZAD KASHMIR
(PAKISTAN CONTROL)**

**JAMMU &
KASHMIR**

LADAKH

PAKISTAN

CHINA
(TIBET)

PUNJAB

HIMACHAL
PRADESH

JAMMU AND KASHMIR MILITANCY

KASHMIR'S UN CONNECTION



- Mountbatten suggested the Government of India to refer the Kashmir problem to the UN.
- A ceasefire agreement was arrived on January 1, 1949. The ceasefire line came to be known as Line of Control (LoC).
- 1951 UN resolution provided for referendum after Pakistan had withdrawn its troops from the part of Kashmir which was under its control.
- Plebiscite in Kashmir never took place.



MOUNTBATTEN

JAMMU AND KASHMIR MILITANCY

A QUICK RELOOK OF TIMELINE

- Standstill Agreement with Pakistan
- Indo-Pakistani war where Pashtuns attacked Kashmir
- Signing Instrument of Accession

1947



1948

- India referred dispute to UN
- Plebiscite couldn't be held as Pakistan didn't respect the condition imposed

- On 1 January, the ceasefire between Indian and Pakistani forces leaves India in control of most of the valley, as well as Jammu and Ladakh, while Pakistan gains control of part of Kashmir including, what Pakistan calls, Azad Kashmir and Northern territories.

1949

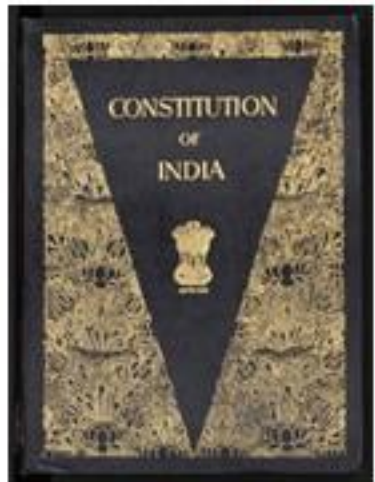


JAMMU AND KASHMIR MILITANCY

A QUICK RELOOK OF TIMELINE

- Constituent assembly of J&K ratified the accession of the state to India

1956



1963

- Mass uprisings occur in the Kashmir Valley and protests occur against Articles 356 and 357 of the Indian Constitution.
- The Indian army attacks the protesters

- A brief war between India and Pakistan over Kashmir.
- Signing of Tashkent agreement

1965

1971

- Liberation war of Bangladesh.



JAMMU AND KASHMIR MILITANCY

A QUICK RELOOK OF TIMELINE

- Signing of Shimla Agreement

1972

1987

- Rigging of 1987 Kashmiri elections
- Insurgency raises in the valley
- Retaliation, arrests and curfew orders by the Indian police and army.

- Soviet occupation of Afghanistan
- Influx of weapons into Kashmir
- Pakistan provides further training to militant groups
- Kashmiri independence movement becomes more islamist

1989

- An estimated one million people take to the streets in protest
- Seen as the beginning of a massive Kashmiri uprising
- India claims that it is orchestrated by Pakistani trained operatives

1990



WHAT IS SIMLA AGREEMENT?

The Simla Agreement was signed by Prime Minister Indira Gandhi and Pakistani President Zulfikar Ali Bhutto on 2 July 1972, following a full-blown war between India and Pakistan in 1971.



WHY WAS IT SIGNED?

- The Simla Agreement was “much more than a peace treaty seeking to reverse the consequences of the 1971 war (i.e. to bring about withdrawals of troops and an exchange of PoWs).” It was a comprehensive blue print for good neighbourly relations between India and Pakistan.
- Under the Simla Agreement both countries undertook to abjure conflict and confrontation which had marred relations in the past, and to work towards the establishment of durable peace, friendship and cooperation.

JAMMU AND KASHMIR MILITANCY

ACHIEVEMENT OF SHIMLA AGREEMENT



- 1** Both the Governments agreed that differences would be resolved by “peaceful means through bilateral negotiations or by any other peaceful means mutually agreed upon between them.”
- 2** The two sides had agreed that the line of control resulting from the cease-fire of December 17, 1971 shall be respected by both sides without prejudice to the recognized position of either side.

When President Donald Trump sought to mediate between Pakistan and India on Kashmir issue, India consistently resisted any third party intervention citing the reason that Kashmir is the internal issue of India.

JAMMU AND KASHMIR MILITANCY

KASHMIR: INDIAN VERSUS PAKISTANI NARRATIVE

INDIAN VIEW

- Hari Singh signed the instrument of accession handing over the control of J&K to India.
- UN resolution of 1948 accepted India's stand over Kashmir.
- Pakistan has not removed its forces from PoK.
- Pakistan kept on funding militancy to destabilize and wage a proxy war over India.

PAKISTAN VIEW

- As per two - nation theory, Kashmir being a Muslim majority region must have been handed over to Pakistan.
- Pakistan accuses India of not conducting plebiscite.
- Pakistan claims that the Maharaja signed the agreement under duress and didn't have the support of majority in Kashmir.



Hari Singh Maharaja

JAMMU AND KASHMIR MILITANCY

KASHMIR MILITANCY - LOW INTENSITY WAR OR PROXY WAR?

- 1 After losing the initial battle in 1947 and the two main wars in 1965 and 1971, Pakistan resorted to the tactics of low intensity warfare as it realised that it could not win over India in a full scale direct war.
- 2 It first supported the terrorist movement in Punjab and then started a separatist and militant insurgency in Kashmir in the late 1980s.
- 3 This low-intensity war between the two countries continues even today in the name of Jihad.
- 4 In 1987, a disputed state election acted as a catalyst for the insurgency when it resulted in some of the state's legislative assembly members forming armed insurgent groups.
- 5 In 1989, a widespread popular and armed insurgency, supported tacitly from across the border, started which during the 1990s escalated into one of the most dangerous internal securities in India.
- 6 It was the beginning of the Mujahideen insurgency, which continues to this day. The insurgency was largely started by Afghan Mujahideen who entered the Kashmir valley following the end of the Soviet-Afghan war.
- 7 Initially, the already existing J&K Liberation Front (JKLF) was used as part of this insurgency. Its main demand was independence of Kashmir.

JAMMU AND KASHMIR MILITANCY

KASHMIR MILITANCY - LOW INTENSITY WAR OR PROXY WAR?

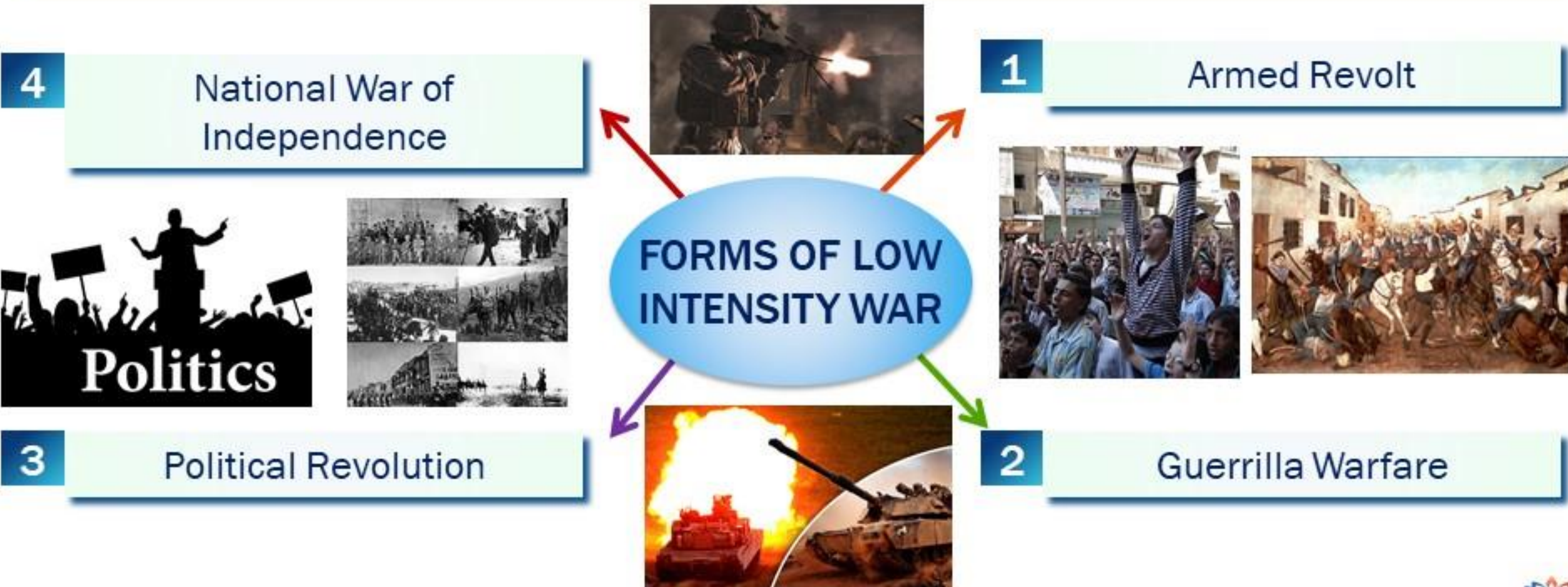


- 8 Recently, new terrorist groups like Hizbul Mujahideen, Lashker-e-Taiba, Jaish-e-Mohammed have been leading the violent activities by infiltrating across the LoC.
- 9 Pakistan's ISI directly supported, funded and trained these terrorist organisations to replicate the Punjab militancy model.
- 10 This is a form of proxy war engaged by ISI.
- 11 These terrorist groups succeeded in ethnic cleansing of Kashmir by forcing nearly 4 lakh Kashmiri pandits to leave the valley.

JAMMU AND KASHMIR MILITANCY

WHAT IS LOW INTENSITY WAR?

Low intensity war is a long and protracted strategy to achieve a desired result, which cannot be achieved through direct war.



JAMMU AND KASHMIR MILITANCY

MODUS OPERANDI OF THE PROXY WAR IN J&K

6 To change the low intensity war to high intensity war at an appropriate time and term it as war of independence

5 To increase terrorist activities in Muslim dominated districts of Jammu region

4 To internationalise the Kashmir issue at every forum and paint India as persecutor of Muslims.



FORMS OF PROXY WAR

1 To run a malicious campaign from Pakistan and PoK to mar India's image in print and electronic media.

2 To facilitate infiltration of terrorists from across the border and keep Indian security forces constantly engaged in fighting terrorists.

3 To attack the secular foundation of the state and support fundamentalist Islamic activities and ensure exodus of Hindus from the valley.



JAMMU AND KASHMIR MILITANCY

ROOT CAUSES BEHIND KASHMIRI UNREST

5

General disenchantment with government: Absence of sound administration, electoral frauds, AFSPA, regular curfews, presence of armed forces etc.



4

Social causes: Poor education and health system, indoctrination of youth by radical leaders.

3

Political causes: Both the countries believe that they have a rightful claim over Kashmir.

CAUSES

1

Confrontation between two nationalisms: If Kashmir seceded from India on grounds of religion, the two-nation theory stands vindicated.

2

Economic causes: Poor economic growth, lack of new job avenues, poor industrial setup, declining tourism, loss of crops due to floods and cloud burst.



JAMMU AND KASHMIR MILITANCY

ROOT CAUSES BEHIND KASHMIRI UNREST

10 External factors: Pakistan incites the sentiments of Kashmiri people especially youth. Chinese support Pakistan indirectly to destabilize India.



9 Heavy stereotyping: Both the countries stereotype the opposite country. This is the result of misappropriation of information in the educational system as well as in the media.

CAUSES

8 An atmosphere of **mistrust** which has paralysed progress towards peace.

6 A larger role for the army has meant **poor functioning of civilian libertarian polity**.



7 Demand for greater political **autonomy** for the region.



JAMMU AND KASHMIR MILITANCY

FACTORS WHICH HAVE FUELLED UNREST IN J&K



JAMMU AND KASHMIR MILITANCY

PULWAMA AND BALAKOT: A PARADIGM SHIFT

1

On Feb 14, 2019 more than 40 CRPF soldiers lost their lives at Pulwama



2

The convoy was attacked by an explosive laden SUV by Adil Ahmad Dar of JeM



3

The Pathankot Airbase attack in 2016 was also conducted by this terror outfit.

4

The Pulwama attack led to a wide emotional upsurge in the citizens of the country.

5

In response to this Indian Air Force struck the terrorist camps of JeM operating in Balakot.

6

It was a pre-emptive attack as there was intelligence of more terror attacks.

7

This is a paradigm shift in India's strategy against terrorism.

After 20 years of Kandahar handing over of terrorists India has changed its image from a soft state to a state which can go to an extent in its fight against terrorism.

JAMMU AND KASHMIR MILITANCY

ISSUE OF STONE PELTING AND PELLET GUNS



- 1 Pellet guns are a form of non-lethal crowd control methods and used by police and military worldwide.
- 2 Non-lethal weapons are used in combat situations to limit the escalation of conflict where employment of lethal force is prohibited or undesirable.
- 3 Pellets guns are intended to injure individuals and cause pain. They are effective over short ranges up to 200 yards but when fired from close quarters can be lethal, particularly when sensitive parts such as eyes are hit.

Humanitarian activists say the use of pellet guns is not in line with international standards on the use of force.

JAMMU AND KASHMIR MILITANCY

TVSN PRASAD COMMITTEE REPORT ON PELLET GUNS



- 1 It has been formed by MHA to review the use of pellet guns.
- 2 It recommended use of pellet guns only in the rarest of rare cases.
- 3 In 2017, the Supreme Court asked the Centre to consider other effective measures following which the government asked the security forces to use plastic bullets.

Use of Human Shield by Major Leetul Gogoi has also given rise to allegations of human rights violation.

DEVELOPMENT ORIENTED PROGRAMS IN KASHMIR



- 1** Project UDAAN- It is an initiative of the PM, the National Skills Development Corporation and the Ministry of Home Affairs which was started with the aim of providing skills to 40,000 youth over a period of 5 years.

- 2** Project Umeed for empowerment of women
- 3** Project Himayat for capacity building and employment of youth
- 4** People-to-people contact with the rest of India through Bharat Darshan program and CBM through cross LoC travel.
- 5** Other schemes like Nai Manzil and USTTAD were introduced in J&K.
- 6** Institutions like AIMS, IIT, IIM; road sector projects like Bharat Mala, Zojila Tunnel; infrastructure projects like SBM and AMRUT.

PROBABLE QUESTIONS ON THIS CHAPTER

- 1 How has Pakistan's ISI changed its strategy regarding Kashmir in the last five years? Elaborate with suitable examples.
- 2 What is the modus operandi of ISI in aiding and abetting extremism in Kashmir?
- 3 What is Article 370? What will be the implications of abolishing Article 370?
- 4 What steps have been taken by Centre to curb terrorism in recent times in J&K?
- 5 Balakot airstrikes are indicative of paradigm shift in India's war against terrorism. Elaborate.

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